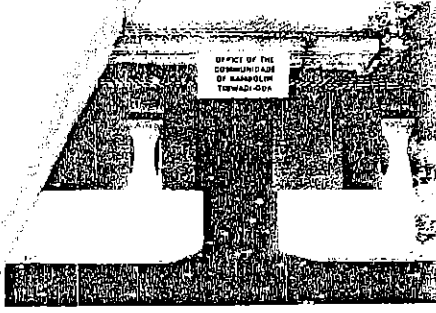




Comunidade de Bambolim

Near Our Lady of Bethlehem Church
P.O. GMC Complex,
Bambolim, Tiswadi-Goa 403 202

Date: 6/08/2021

Ref No. COM/BAM/PER/2020-2021-54

To,
Government of Goa,
Secretary (Revenue)
Secretariat, Porvorim,
Bardez-Goa.

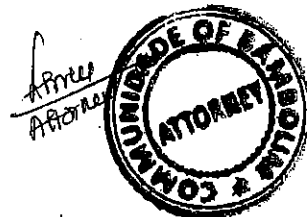
Through Administrator of Comunidades, (CZ) Tiswadi.

Sub: Permission in view of order dated 26/07/2021 passed by Hon'ble Administrative Tribunal, Panaji under Code of Comunidades to compromise Special Civil Suit No. 52/2013/A pending before Civil Judge Senior Division at Panaji Goa, in respect of properties surveyed under survey No. 93/2, 93/3 and 93/4 of village Bambolim, Tiswadi, Taluka

Sir,

A) Comunidade of Bambolim is filing this application for approval settlement of Civil Suit 52/2013/A in view of order dated 26/07/2021 in case no 2/2021/ suit/permission/ Comunidade/compromise passed by Hon'ble President, Administrative Tribunal to obtain approval of the Government for settlement of the suit and resubmit the application to the Hon'ble Tribunal under Article 350 of the Code of Comunidade.

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The facts are as under:-

- B) Some Gaunkars of the Comunidade of Bambolim had filed Civil Suit No. 66/2009 and writ petitions in respect of properties surveyed under survey No. 89/3,90/, 93/2, 93/3 and 93/4 of village Bambolim, Tiswadi, Taluka claiming the same as Comunidade properties.
- C) In the year 2013 the Comunidade decided to file the suit in respect of these properties on its own. Upon an application of the Comunidade of Bambolim to grant approval to file the suit as required under Article 349 of the Code of Comunidade, the Hon'ble President, Administrative Tribunal Panaji Goa, vide order dated 08/10/2013 and 15/10/2013 in case no. 4/2013/AT/ADM/PERM/COM/BAMBOLIM conveyed permission to file suit against Mr. Pascoal Trinidade and others in respect of properties surveyed under survey No. 93/2, 93/3 and 93/4 of village Bambolim, Tiswadi, Taluka, and to file application for transposing Comunidade as plaintiff in Civil Suit No. 66/2009.
- D) Comunidade of Bambolim thereafter filed Special Civil Suit No. 52/2013/A against Pascoal Trinidade and others before Civil Judge, Senior Division at Panaji, claiming right in respect to the properties surveyed under survey No. 93/2, 93/3 and 93/4 of village Bambolim, Tiswadi, Taluka, having an area of 35600 square meters, 26825 square meters and 35075 square meters respectively, which are the balance lands of larger properties namely lote No. 43 Adicao 'B', lote No. 47 and lote No. 49 of Planta No 15036 and 15037 after land acquisition proceedings no. LQN-10/1965. The acquiring Department took possession of acquired land vide letter no. LQN-10/227 dt 26/02/1966 from Comunidade de Bambolim. Subsequently Comunidade obtained corresponding certificate on 05/12/2012 from Supt. of surveys and Land Records to prove that the properties surveyed under survey no. 93/1, 93/1A,

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93/2, 93/3 and 93/4 by determining and superimposing new survey map on planta no. 15036 and 15037 of Comunidade of Bambolim.

- E) The defendants No. 1 and 2, namely Pascoal Trinidad and Albertina Trinidad in Special Civil suit No. 52/2013/A, submitted a proposal to the Comunidade of Bambolim, vide letter dated 20/12/2020 for settling the dispute relating to the land surveyed under survey No. 93/2, 93/3 and 93/4 named Saveli Gali having a total area of 97,500 square meters of village Bambolim, Tiswadi Taluka, considering number of litigations and counter litigations which will lead to many years so as to put an end to the litigation in best interest to Comunidade. The said application was placed in the extraordinary general body of components in the meeting held on 3/1/2021 by adhering the procedure laid down in the Code of Comunidades. (viz publication of notice in government gazette and local newspaper) The components of Comunidade, unanimously resolved and approved to settle the dispute related to land surveyed under survey No. 93/2, 93/3 and 93/4 of village Bambolim, Tiswadi Taluka. The Minutes of the settlement are recorded in the minutes Book (Actas) at page 106 overleaf to 112 overleaf in the extraordinary meeting held on 03/01/2021 in accordance with Article 30 (4) (g) of Code of Comunidades. (Institutions, admission, withdrawal and compromise civil suit) The copy of the minutes of the meeting dated 3/1/2021 are annexed as Annexure I. (Pg 1 to 23)

THE HISTORY OF THE DISPUTE ARE AS UNDER:

- 1) That in the year 1994 a suit proceeding for Declaration and Injunction viz. Special Civil Suit no. 222/94 was instituted before the Court of Civil Judge, Senior Division at Panaji, by the Comunidade against Maximo Mergulhao, in respect of property bearing number 89/3 of the village Bambolim, being part of larger property of Comunidade bearing Lote no. 43 Adicao 'A' named 'OROS' after land acquisition

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proceedings of the year 1965 in land acquisition case no. LQN-10/1965 as per planta no. 15036 of Comunidade. Exhibited as Annexure 'B'. (Pg 137 to 144)

- 2) That Comunidade of Bambolim inter alia filed an application for temporary injunction in Civil Misc. Appl No. 415/94/A. The said temporary injunction Application was dismissed by the Hon'ble Court vide Order dated 17th June 1996.
- 3) That, thereafter the Special Civil Suit no.222/94/A was abruptly compromised by compromise decree dated 21/11/1998 with compromise terms including four other properties namely survey No. 90/1, 93/2, 93/3 and 93/4 of village Bambolim, without obtaining permission from the Hon'ble Administrative Tribunal and the compromise terms were signed by the then special attorney of the Comunidade without following the procedure. The properties surveyed under survey No. 90/1, 93/2, 93/3 and 93/4 of village Bambolim were not subject matter of the said Civil Suit no. 222/94 but were included in the compromise terms. The compromise terms dated 19/11/98 and decree dated 21/11/98 is exhibited as Annexure II collly. (Pg 24 to 37)
- 4) That, after execution of compromise decree dated 21/11/1998 Mr. Pascoal Trinidad purchased the properties bearing survey No. 93/2, 93/3 and 93/4 of village Bambolim, Tiswadi Taluka for consideration by three registered sale deeds dated 25/4/2006 from Ms. Dionisia Dias e Mergulhao wife of deceased Maximo Meghulhao. Exhibited as Annexure 'C' 'D' and 'E'. (Pages 145 to 207)
- 5) It is also found that Mr. Pascoal Trinidad had filed Civil Suit No. 6/2007 on 20/1/2007 against the persons who had claimed tenancy rights in respect of the properties surveyed under survey No. 93/2, 93/3 and 93/4 of village Bambolim Tiswadi Taluka. The said Suit was compromised on 25/1/2007 by deleting their names from other rights column. Exhibited as Annexure G. (Pages 335 to 340)

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6) That the then Special Attorney Shri. Jeronimo M. Monteiro after signing the consent terms dated 19/11/98 and Decree dt. 21/11/98 did not disclose to the then Managing Committee or presented before the General Body of the Gaonkars and the decree was known only in the year 2009 from the village Panchayat of Curca, Bambolim and Taulim vide letter dated 02/01/2009 in response to letter dated 10/12/2008 under Right to Information Act 2005 of the then President and Attorney of Comunidade.

7) i) At this time a Writ petition No. 102/2009 was filed by some components/Gaonkars of Comunidade de Bambolim and direction were issued by Hon'ble High Court, Bombay Bench at Panaji vide Order dated 18/2/2009 to the Administrator of Comunidades and Collector, to act in accordance with law and pass appropriate order. Exhibited as Annexure 'F' at Pages 208 to 232)

ii) The Administrator of Comunidades passed Order on 03/07/2009 directing the Comunidade to initiate appropriate proceedings in law to challenge all the actions as the same cannot be sustained. Exhibited as Annexure 'H'. (Pages 235 to 238)

iii) Likewise, the Dy. Collector & SDO North Goa Panaji in case no. ILL/CNV/19/ TIS/2009 after inquiry passed judgment and Order on 01/08/2011 in Case No. ILL/CNV/19/2009 that land surveyed under survey no. 89/3, 93/2, 93 /3 and 93/4 of village Bambolim are not tenanted land and survey No. 90/1 is tenanted agriculture land and hence no conversion is permissible. Exhibited as Annexure 'I'. (231 to 270)

8) The judgment and order dated 1/8/2011 passed by the Dy, Collector and SDO Panaji in case no. ILL/CNV/19/ TIS/2009 was challenged by Ms. Raghurai Tamba before the Administrative Tribunal in Land Revenue Appeal No. 62/2011 as regards to survey No. 90/1 of village Bambolim which was declared as tenanted. The said appeal is remanded vide Order dated 21/6/2017 by the Hon'ble President, Administrative Tribunal Panaji to the learned Dy. Collector & SDO North Goa Panaji for giving fresh decision in accordance with law

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after providing reasonable opportunity to the parties to the proceedings. Presently the case is pending before the Dy, Collector & SDO Panaji as LRC/ 19/2009. (Exhibit ANN K Pg 271 to 305)

- 9) During this time some other Gaonkars filed Writ petition No. 506, 557, 577/2009 and 657/2011 before the Hon'ble High Court Bombay Bench at Panaji challenging development of land which were decided by considering the judgment an order dated 1/8/2011 passed by the Dy. Collector and SDO Panaji in case No. ILL/CNV/19/ TIS/2009. The Hon'ble High Court dismissed the above Writs Petitions by common Order dated 29/3/2012 with liberty to approach competent forum or courts with the observation that the inquiry the petitioner's desire cannot be undertaken in High Court limited jurisdiction. The special leave Petition filed before the Hon'ble Supreme Court of India by the components was dismissed vide order dated 24/8/2012 wherein it was observed that it is a civil dispute.
- 10) At this time two gaonkars of Comunidade Mr. Benevelo B.A.de Souza and another also filed Civil Suit no.66/2009 (Comunidade being respondent transposed as Plaintiff by Court Order dated 16 October 2014) in respect of the properties bearing survey No.93/2,93/3 and 93/4 as well as property under survey No. 89/3 and 90/1 of village Bambolim challenging the said decree and development in the said plots.
- 11) That after the knowledge of the decree (21/11/98) the then committee members filed Civil Misc. Application no.6/2010 on behalf of Comunidade of Bambolim to set aside/ recall consent decree dated 21/11/98 under Section 151 and Order XXIII Rule 3 of Code of Civil Procedure. The copy of the Civil Misc. Application no. 6/2010 is exhibited and annexed as Annexure III. (Pages 38 to 56)
- 12) The Comunidade of Bambolim also filed Land Revenue Appeal with an application for condonation of delay being application No. Misc/Appl/216/2013/Condone before the Administrative Tribunal Panaji against the Judgment and order Dated 1/8/2011 passed by the

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Dy. Collector & SDO Panaji in case No. ILL/CNV/TIS/2009 which was dismissed by the Administrative Tribunal vide Order dated 22/3/2016. The said Order is challenged by the Comunidade before the Hon'ble High Court Bombay Bench at Panaji in Writ Petition No. 558/2016 which is pending. Exhibited as Annexure 'L' (Pg 306 to 321)

13) Thereafter the Civil Misc. Application no.6/2010/B for recall of compromise Decree was dismissed by the Civil Court vide Order dated 18/8/2016. However, after filing review application (2/2016/B) by an order dated 23/10/2018 the application was restored and the Hon'ble Civil Court directed to hold enquiry. This Order is challenged by Mr. Pascoal Trinidade by filing Civil Revision Application No.46/2018 which is pending before the Hon'ble High Court.

Exhibit 'M' Pages 322 to 329.

14) That the three sale deeds executed in favor of Pascoal Trinidad in survey No. 93/2, 93/3 and 93/4 of village Bambolim of Tiswadi Taluka admeasuring 97,500 sq. mts were challenged by the Comunidade in Special Civil Suit No. 52/2013/A before Civil Judge, Senior Division, Panaji against Pascoal Trinidade and others after obtaining permission from the President, Administrative Tribunal, Panaji dated 8/10/2013. The copy of the plaint filed by the Comunidade and written statement is exhibited as annexure IV. Colly. (Pg. 57 to 121) and Ann-'T' at Pgs 342 to 351)

15) In the meanwhile it was found that Mr. Pascoal Trinidade and Mrs. Albertina Trinidade executed sale deed on 14/7/2014 during the pendency of Civil Suit 52/2013/A in favor of M/s. Loonkar Dev.P. Ltd. Mumbai in respect of the property bearing survey No. 93/2 of village Bambolim, Tiswadi Taluka admeasuring 35,600 sq. mts. Hence M/s. Loonkar Dev. P. Ltd was joined as party defendant in Civil Suit No. 52/2013/A.

16) That it is revealed that sale deeds were executed by Mrs. Raghurai Tamba as well as Mrs. Dionisia Dias e Mergulhao with others in respect of survey No. 89/3 of village Bambolim Tiswadi Taluka and not in survey No. 90/1 of village Bambolim being agriculture

tenanted land and hence no conversion is permissible. The sale deeds in respect of the properties bearing survey No. 89/3 and 90/1 of village Bambolim are challenged by Comunidade against Mrs. Dionisia Dias e Mergulhao (wife of late Maximo Mergulhao) Ms. Raghurai Tamba and others by filing Special Civil Suit No. 4/2014/A in the Court of Civil Judge, Senior division at Panaji which is pending.

17) It was revealed that Mrs. Dionisia Dias e Mergulhao through her constituted Attorney, Shri. Raghurai Tamba filed Special Civil Suit No. 15/2001/A on 12/02/2001 in the court of Civil Judge Senior Division at Panaji against the Shri. Rayu Ishwar Gauns and his wife Smt. Tulshi R. Gauns in respect of the property bearing survey No. 90/1 of village Bambolim. The Suit is decided by Judgment dated 11/4/2001 directing the Mamlatdar of Tiswadi to delete the name of the defendant from revenue record form I & XIV.

18) That Mr. Pascoal Trindade filed an application on 13/1/2014 before the Civil Judge, Senior Division Panaji under Order VII rule 11(d) of CPC 1908 in Special Civil Suit No. 52/2013/A stating that the Suit is filed after many years and barred by limitation. The said application was rejected by the Hon'ble Court vide Order dated 30/7/2016 holding that it is mixed question of fact and law. *(Exhibit 'V' and 'W' at Pages 369 to 389.)*

The said order was challenged by Mr. Pascoal Trindade before the Hon'ble High Court, Bombay Bench at Panaji in Civil Revision Application No. 46/2016 which is pending. Exhibited as Annexure *'Y' at Page 416.*

19) That subsequently by order dated 13/3/2020 the Civil Court passed order of injunction in Special Civil Suit No. 52/2013/A ordering the respondents No. 1 & 2 i. e (Pascoal Trindade & Mrs. Albertina Trindade) from starting any development and interfering the Suit property under survey No. 93/2, 93/3 & 93/4 of village Bambolim till disposal of the Suit. Exhibited as Annexure *'X' at Pages 390 to 415.*

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20) That the orders passed by the Hon'ble Civil Court dated 30/7/2016 in Special Civil Suit No. 52/2013/A and order dated 23/10/2018 in MCA 6/2010 are challenged by Pascoal Trinidad in Civil Revision Application No. 46/2016 & 41/2018 respectively which are pending before the Hon'ble High Court Bombay Bench at Panaji. There are also proceedings relating to tenancy issue of these properties pending before Dy. Collector and SDO Panaji in case No. LRC 19/2009 as well as in the High Court.

21) Mr. Pascoal Trinidad & Mrs. Albertina Trinidad who are defendant No. 1&2 in Special Civil Suit No. 52/2013 submitted settlement proposal in respect to the properties under survey No. 93/2, 93/3 and 93/4 of village Bambolim Tiswadi Taluka to the Managing Committee vide letter dated 20/11/2020, which is reproduced below.

The proposal settlement is as follows:

- a. Transfer of settlement zone land admeasuring 5,000 sq.mts.in any one out of above referred properties i.e. Survey No. 93/2, 93/3 and 93/4 of village Bambolim Tiswadi Taluka duly demarcated and fenced to the Comunidade of Bambolim.
- b. Payment of compensation of Rupees Ten Crores (Rs. 10,00,00,000) to the Comunidade of Bambolim.
- c. Construction of cultural/ sports arena on above mentioned 5000 sq.mts. consisting of basketball court, badminton court, volleyball court, stage an ladies and gents toilets for the Comunidade of Bambolim.

Besides Mr. & Mrs. Pascoal Trinidad has stated in the said letter (20/11/2020) that upon compliance and filing of consent terms all the disputes and litigations pertaining only to the properties surveyed under survey no. 93/2, 93/3 and 93/4 of village Bambolim will be withdrawn. Viz. Special Civil Suit No. 52/2013/A, Civil Suit No. 66/2009 as well as MCA 6/2010/B and also LRC 19/2009 pending in

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various courts and before DY. Collector at Panaji. The copy of the settlement proposal is exhibited as annexure V. (Pg 122 to 124)

- 22) Since it was found M/s. Loonkar Dev. Ltd. Mumbai, has purchased the property bearing survey No. 93/2 of village Bambolim admeasuring 35,600 sq. meters from Mr. & Mrs. Pascoal Trinidad by a registered sale deed dated 14/7/2014 during pendency of Special Civil Suit No. 52/2013/A, the Comunidade sought clarification from M/s. Loonkar Dev. Pvt. Ltd. as the area of 5,000 sq. meters under survey no. 93/2 is in their possession and M/s. Loonkar Dev. Pvt. Ltd. agreed to give the said area vide communication letter dated 30/12/2020 and that they will sign the consent terms along with Mr. Pascoal Trinidad & Mrs. Albertina Trinidad. The copy of letter dated 30/12/2020 is exhibited as annexure VI. (Pg 125)
- 23) The extraordinary General Body Meeting of Comunidade was called on 3/1/2021 after publishing notice in the official gazette series III No. 37 dated 10/12/2020 and also in local newspaper dated 17/12/2020 to discuss and decide the settlement proposal received from Mr. and Mrs. Pascoal Trinidad dated 20/11/2020 in accordance with clause 4 (g) of Article 30 of code of Comunidades.
- 24) The said proposal was discussed in detail by the components in the general body meeting and taking into consideration the claim of Pascoal Trinidad under the three sale deeds dated 25/4/2006 in respect of properties surveyed No. 93/2, 93/3 and 93/4 of village Bambolim executed by Mrs. Dionisia Dias e Mergulhao (wife of deceased Maximo Mergulhao) as well as pending suits filed by Comunidade viz. Civil Suit No. 66/2009 filed by Benevelo B.A. D'Souza and another (Comunidade being respondent transposed as applicant by Court order dated 16/10/2014) LRC 19/2009, MCA 6/2010 in 222/94, Special Civil Suit No. 52/2013/A, CRA 41/2018, CRA 46/2016 and Writ Petition No. 558/2016 pending before the High Court. The general body also considered the orders challenged by Mr. Pascoal Trinidad in Civil Revision Application No. 46/2016 and 41/2018 before the Hon'ble High Court of Bombay at Goa against

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the orders passed by the Civil Courts dated 30/7/2016 and 23/10/2018 and the order dated 13/3/2020 of temporary injunction passed in Civil Suit No. 52/2013/A. The Comunidade also discussed the purchase of land admeasuring 35,600 sq.mts. in the survey no. 93/2 by Ms. Loonkar Dev. Pvt. Ltd. Mumbai, from Mr. Mrs. Pascoal Trindade by a registered sale deed dated 14/7/2014 during the pendency of Special Civil Suit No. 52/2013/A as well as pending tenancy issue. (Annexure I at pages 1 to 23)

- 25) The components noted that originally there were various names in their rights columns of these survey numbers and Pascoal Trindade got the names deleted by filing Civil Suit No. 6/2007 and thereafter converted the land by obtaining conversion Sanad, obtained technical clearance approvals from Town and Country Planning Department and construction licenses from the village Panchayat of Curca, Bambolim and Talaulim in respect of properties surveyed under survey no. 93/2, 93/3, and 93/4 of Village Bambolim, Tiswadi Taluka also claimed that they have invested huge amount for development for which litigation has become long since the year 2009. The components of Comunidade also discussed the issue of delay in approaching the court since 2009 (66/2009) after compromise decree passed in the year 1998 and also tenancy issue raised by Mr. Pascoal Trindade in the suit.
- 26) In view of complicated issue of claim over the properties surveyed under survey no. 93/2, 93/3, and 93/4 of Village Bambolim, the delay involved in getting the suits resolved through courts and liability towards payment of professional fees to the learned advocates appointed by Comunidade to defend the interest of Comunidade, from Trial Court to High Court, the Comunidade (components) arrived to the conclusion that if the settlement proposal is accepted, then it shall be in the interest of the Comunidade. Therefore the General Body after lengthy discussion unanimously resolved and approved the settlement proposal submitted by Mr. & Mrs. Pascoal Trindade in respect of the properties bearing survey no. 93/2, 93/3 and 93/4 of village Bambolim under which it was agreed to allot land

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of 5,000 sq mts. and payment of Rupees Ten Crores to the Comunidade. It was decided that upon acceptance of settlement proposal and filing of consent terms in special civil suit no. 52/2013/A, the pending civil suit No. 66/2009, LRC 19/2009 and MCA 06/2010 (in Civil Suit No. 222/94) will be amended in order to continue the claim in respect of the properties under survey no. 89/3 and 90/1 total admeasuring 37,975 sq. mts. of revenue village of Bambolim and continue Special Civil Suit No. 04/2014/A and MCA 06/2010 (in Civil Suit No. 222/94) pending in the Civil Judge Sr. Division at Panaji and LRC 19/2009 pending before the Deputy Collector and writ petition no. 558/2016 pending in the High Court.

27) The General Body also noted that the properties surveyed under survey no. 89/3 admeasuring 32,325 sq. mts. and 90/1 admeasuring 5,650 sq. mts. of village Bambolim are presently in possession with M/s Raghurai Tamba and others after the compromise decree dated 21/11/1998 in special Civil Suit No. 222/1994 which decree and sale deeds are challenged in Civil Suit No. 66/2009, MCA 06/2010 in special Civil Suit No. 222/1994 and Special Civil Suit No. 4/2014/A at Civil Courts and LRC 19/2009 and tenancy is pending before the Deputy Collector, North Goa, Panaji.

28) The learned advocate defending the interest of Comunidade was consulted on the said issue in view of settlement proposal submitted by Mr. & Mrs. Pascoal Trindade dated 20/11/2020 of 3 properties namely survey no. 93/2, 93/3, and 93/4 of village Bambolim and in respect of two properties that is survey no. 89/3 and 90/1. The learned advocate vide letter dated 04/12/2020 has clarified that the litigation and claim of Comunidade to the properties surveyed under survey no. 89/3 and 90/1 can be continued in a special Civil Suit No. 4/2014/A, 66/2009, LRC 19/2009 and MCA 6/2010 in Special Civil Suit No. 222/1994, while survey No. 93/2, 93/3, and 93/4 will be excluded by way of amendment of the proceedings in view of settlement.

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- 29) In view of above clarification communicated by learned advocate defending the interest of Comunidade in the letter dated 04/12/2020, the components after lengthy discussion resolved and agreed to carry out necessary amendments in various suits and continue the suit litigation namely special Civil Suit No. 4/2014/A and other proceedings filed against M/s Raghurai Tamba as well as Mrs. Dionisia Dias e Mergulhao and others after settling special Civil Suit No. 52/2013/A.
- 30) The consent terms drafted by learned advocate after discussion with the Managing Committee of Comunidade and agreed by Mr. & Mrs. Pascoal Trindade and M/s Loonkar Dev. Pvt. Ltd. and an application to delete the other defendants in special Civil Suit No. 52/2013/A to felicitate the compromise were discussed. The copy of draft consent terms is annexed as annexure VII (Pgs 126 to 129)
- 31) The details of 5,000 sq. mts. of land and structures to be constructed is marked on the survey plan with separate statement and ~~exhibited~~ as Annexure Z(i) at Pages 421 to 423
- 32) After lengthy discussion the components of Comunidade of Bambolim in the extraordinary General Body meeting held on 03/01/2021 unanimously resolved and approved the settlement proposal given by Mr. & Mrs. Pascoal Trindade vide letter dated 20/11/2020 in survey No. 93/2, 93/3 and 93/4 of village Bambolim and also the consent, communicated by M/s Loonkar Dev. Pvt. Ltd., Mumbai vide letter dated 30/12/2020 to allot five thousand sq. mts. in survey no. 93/2 of village Bambolim along with construction of basketball court, badminton court, volleyball court, stage and ladies and gents toilets for the Comunidade of Bambolim and payment of Rupees Ten Crores to the Comunidade.

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The Comunidade De Bambolim in its General Body meeting therefore came to the conclusion as follows:

- 1) That there are number of litigations filed by Comunidade at various courts, viz Civil Suit No. 66/2009, Civil Misc. Appln No. 6/2010 in civil suit no. 222/94, special Civil suit no. 52/2013/A, 4/2013/A, LRC-19/2009 and Writ Petition No. 558/2016 against Maximo Mergulhao, Mrs. Dionisia Dias e Mergulhao, Mr. Pascoal Trindade, M/s. Raghurai Tamba and Mrs. Loonkar Dev. Pvt. Ltd. and some of the orders which are challenged by the Mr. Pascoal Trindade against Comunidade in Civil Revision Application No. 46/2016 and 41/2018 pending before the Hon'ble High Court.
- 2) That the above suit and civil revision application prevailing at various Courts may lead to several years which could be subsequently challenged before the Hon'ble Supreme Court and therefore could be put to an end by the way of settlement, withdrawal, compromise by either applicants or respondents, to avoid burden on the coffers of Comunidade on account of payment of professional fee of learned advocates appointed by Comunidade.
- 3) That the Comunidade has powers enlisted in article 30 (4) (g) of Code of Comunidades (withdrawal and compromise Civil Suit).
- 4) That to take steps to compromise the suit required in the best interest of components of Comunidade.
- 33) The Comunidade after due deliberation has decided to compromise the suit considering the long litigation, complicated legal issues involved, huge legal expenses incurred by the Comunidade, nature of the land as it was earlier and the claim of investment made by the defendants in the suit as well as independent claim of ownership with possession made by the defendants and disputed identity of the property.

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- 34) The general body of components decided that the settlement is in the interest of the Comunidade and decided that the proposal along with consent terms should be submitted to the Administrative Tribunal, Panaji for approval accordance with Article 154 (3), 349 & 350 of Code of Comunidades and upon obtaining approval the Special Civil Suit no. 52/2013 should be settled.
- 35) After the said resolution and the application along with the consent terms was made to Administrative Tribunal under Article 350 of Code of Comunidades to grant approval to settle the suit by the Comunidade. The Hon'ble President, Administrative Tribunal, Panaji, during the course of hearing the application of Comunidade dated 22/03/2021 desired a copy of Survey Plan bearing Survey No. 93/2, 93/3 and 93/4 of Village Bambolim which are in dispute in Special Civil Suit No. 52/2013 and to demarcate the area and dimensions of allotted 5,000 sq. mts., to Comunidade, in Survey Plan No. 93/2 of Village Bambolim as per the settlement proposal dated 20/11/2020 by Mr. & Mrs. Pascoal Trinidad. The same were submitted by Ld. Advocate dealing the case which are placed in the file at page 421 to 423. However by order dated 26/07/2021 the Hon'ble President, Administrative Tribunal directed to obtain approval of Government for settlement of the Suit referring to Article 30 of the Code of Comunidade as well as order dated 08/02/2021 of Hon'ble High Court in Writ Petition No. 983/2019 observing that Government approval is required for settlement of suit related to property and upon obtaining approval of Government by the Comunidade, it is directed to resubmit the application to the Hon'ble Tribunal for approval. The copy of order of Hon'ble Administrative Tribunal dated 26/7/2021 is Exhibited at pages 424 to 428 and copy of Judgment dated 08/02/2021 of Hon'ble High Court in Writ Petition No. 983/2019 is Exhibited at pages 429 to 456.

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- 36) In view of the order of the Hon'ble Administrative Tribunal dated 26/7/2021, the Comunidade de Bambolim request the Government to grant approval to compromise special civil suit no. 52/2013/A as per the resolutions of Comunidade dated 3/1/2021 and consent terms approved by the Comunidade. The file papers returned by Hon'ble Administrative Tribunal and the Administrator of Comunidade are enclosed alongwith this application.
- 37) Hence it is prayed that approval may be granted by the Government considering the order of the Hon'ble Administrative Tribunal dated 26/7/2021, as early as possible since the civil court is proceeding with evidence in the suit on day today basis as the case is almost 8 years old.

Yours faithfully

Luis de Abreu

(Luis de Abreu)

Attorney Comunidade of Bambolim

